

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Shahid Bilal Hassan
Justice Shakeel Ahmad

C.P.L.A No. 4878/2025 and CMA No.14023/2025

*(Against the judgment dated 11.09.2025 passed by
Lahore High Court, Bahawalpur Bench, Bahawalpur in
Civil Revision No. 143 of 2023)*

Muhammad Ishfaq & another ... Petitioners

Versus

Salma Begum ...Respondent

For the Petitioners : Syed Shahab Qutub, ASC
(via video link from Branch Registry, Lahore)

For Respondent : N.R

Date of Hearing : 08.01.2026

ORDER

Shakeel Ahmad, J.- This Civil Petition for Leave to Appeal, filed under Article 185(3) of the Constitution of the Islamic Republic of Pakistan, 1973, is directed against the judgment and decree dated 11.09.2025 (***“impugned judgment”***) passed by the Lahore High Court, Bahawalpur Bench, Bahawalpur (***“the High Court”***), whereby Civil Revision No. 143 of 2023, filed by the respondent, was allowed.

2. Brief facts giving rise to the instant petition are that the respondent instituted a suit for declaration and other such reliefs, challenging Sale Mutation No. 4763 dated 17.08.2015 (***“impugned mutation”***). The respondent alleged that she is a simple woman, that her husband, Shahnawaz, passed away in the year 2012, and that owing to cordial relations between her late husband and the petitioners, it was agreed that the suit land, enclosed by a boundary wall, would be let out to the petitioners on rent. It was further alleged that, under the pretext of the said arrangement, the petitioners fraudulently obtained her thumb impressions on documents other than a rent deed, resulting in the sanction of the impugned mutation. The suit was contested by the petitioners through filing of written statements. Upon divergent pleadings, issues were framed and, after recording of evidence from both sides, the trial Court dismissed the suit vide judgment and decree dated 04.07.2022. The appeal preferred by the respondent was also dismissed by the appellate

Court vide judgment and decree dated 19.01.2023. Thereafter, the respondent invoked the revisional jurisdiction of the High Court, which, through the impugned judgment, set aside the concurrent findings and decrees of the courts below. Hence, the present petition.

3. Heard and record gone through.

4. A perusal of the record reveals that the respondent appeared as PW-1 and, during cross-examination, asserted that she is a simple, old, illiterate, and *pardanashin* lady, having rural background, thereby contending that the burden lay upon the petitioners to establish that the sale transaction was effected with her free will and conscious understanding. It is on record that the respondent has two sons who had attained majority at the time when the impugned mutation was sanctioned. According to the statement of Allah Bakhsh (DW-1), one of the respondent's sons was present at the time of the execution of the impugned mutation, but astonishingly, the respondent was not identified by him. Instead, her identification was made by Sajjad Hussain (DW-2), who is not only first cousin of the petitioner but her sister is also married to his elder brother, namely Ishaque, which too makes genuine execution of the mutation suspicious. In cases involving *pardanashin* or similarly placed women, this Court has consistently exercised heightened caution and has emphasized compliance with the safeguards articulated in the cases of *Phul Peer Shah*¹, *Ghulam Farid*² and *Ghulam Muhammad*³. These largely include the party relying upon such a transaction must prove that it was entered into with the woman's free will and informed consent, that its nature and consequences were explained to her in a language she understood, that she had the benefit of independent and disinterested advice, that the witnesses were trustworthy and free from any conflict of interest, and that the sale consideration was duly paid and received by her. However, the petitioners failed to satisfy the aforesaid conditions and, consequently, did not discharge the onus cast upon them by law to establish that the transaction was entered into with the respondent's free will and informed consent.

¹ *Phul Peer Shah v. Hafeez Fatima* (2016 SCMR 1225)

² *Ghulam Farid & Another v. Sher Rehman through LRs* (2016 SCMR 862)

³ *Ghulam Muhammad v. Zohran Bibi & others* (2021 SCMR 19)

5. Furthermore, the impugned mutation is stated to be founded on an oral transaction between the parties. It is well settled that once a mutation is called into question, the party relying upon it is obliged to prove the underlying transaction from which such mutation emanates, as a mutation by itself is not a document of title but merely reflects a prior transaction between the parties. Reliance in this regard may be placed on *Muhammad Akram*⁴. However, in the written statement, the petitioners failed to plead or disclose any material particulars of the alleged oral sale transaction, which purportedly culminated in the sanctioning of the impugned mutation.

6. Accordingly, in the cumulative backdrop of the aforementioned infirmities and the failure of the petitioners to discharge the burden cast upon them by law, the High Court was correct in exercising its revisional jurisdiction to set aside the manifest illegality and material irregularity occasioned by the judgments and decrees of the courts below

7. In light of the above and in the absence of any illegality or material irregularity in the impugned judgment, this Court finds no occasion to interfere. The petition, along with the connected CMA, is dismissed, and leave declined. No order as to costs.

Islamabad
08.01.2026
M. Rizwan/Rameen LC

Approved for reporting

⁴ Muhammad Akram & Another v. Altaf Ahmad (PLD 2003 SC 688)